



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2023-28805 / PODS Case No. C-034673 regarding
Detective Terry Avent, Tax No. 932280

Date: March 30, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved an allegation that Detective Avent used offensive language towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Detective Avent will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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June 30, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Detective Terry Avent (Tax Reg #932280, DADS #2023-28805)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a penalty of Training was agreed upon and signed by all parties on June 4, 2025. Assistant Deputy Commissioner Anne Stone endorsed the negotiated settlement on June 17, 2025.

On March 30, 2022, Detective Avent and fellow officers executed a search warrant [REDACTED] on Staten Island. One of the individuals at that address was a civilian named [REDACTED]. BWC captured Detective Avent stating to Mr. [REDACTED], "settle down crazy" and "come here crazy," as he orders him out of the apartment.

The statements made by Detective Avent to Mr. [REDACTED] constitute Offensive Language, in that they were based upon the perceived mental disability of Mr. [REDACTED].

For the charge of Offensive Language, the disciplinary matrix lists a mitigated penalty of the forfeiture of one (1) penalty day, a presumptive penalty of the forfeiture of twenty (20) vacation days, and an aggravated penalty of the forfeiture of Termination. The negotiated settlement deviates from NYPD disciplinary guidelines as to Offensive Language for the following reasons:

The basis for this recommendation is Detective Avent's twenty-two years of service, lack of any prior disciplinary history, and the fact that he received a score of 9 out of 10, well above standards, in his most recent evaluation.

Respectfully submitted,

Brian Arthur
Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board